A COMPENDIUM OF RULES AND REGULATIONS ON STUDENT CONDUCT; ACADEMIC ASSESSMENT; AND EXAMINATIONS ADMINISTRATION

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VICE-CHANCELLOR'S FOREWORD

As a centre for higher learning, the university has the obligation to maintain conditions conducive to the freedom of enquiry and expression to the maximum degree, compatible with the orderly conduct of its functions. For these purposes, the university is governed by rules, regulations, procedures, and policies that safeguard its functions and protect the rights and freedoms of all members of the academic community.

Admission to the university carries with it the presumption that students will conduct themselves as responsible members of the academic community. As a condition for enrolment, all students assume responsibility to observe standards of conduct that will contribute to the successful pursuit of academic goals and to the welfare of the academic community. Further, in pursuit of the university's mandate, members of the academic and administrative staff are guided by rules and regulations to guarantee the realisation of the goals of the institution. Failure to follow rules and regulations regarding assessment and administration of examinations, for example, may result in compromised quality and standards of the education offered and the quality of graduates.

Staff and students shall at all times practice high standards of academic and professional honesty and integrity; and respect processes and procedures, rights, privileges, and property of other members of the academic community and visitors to the campus. Staff and students should desist from conduct that compromises the quality of examinations and assessments, and students should also refrain from any conduct that would interfere with University functions or endanger the health, welfare, or safety of other persons. Staff and students shall therefore be expected to comply with the rules, regulations, procedures, policies, standards of conduct, and orders of the University.

Professor Samson Sajidu
VICE-CHANCELLOR

DEFINITIONS

Assessment: any form of prescribed work that is evaluated for the purpose of awarding a grade. In particular, it includes written, oral and practical examinations, coursework, project work, examination of theses, dissertations and similar work, and such other means of evaluating candidates' performance as may have been approved or prescribed by Senate in relation to any course or programme of study.

Defamation: communication in any form of a falsehood about a person to a third party where the statement has the effect of lowering public reputation of the former or causing him/her to be shunned and avoided by others.

End-of-semester examination: the final assessment component of a module.

Examinations: all assessments that contribute to the final result in the course.

Examinations can take the form of formative assessment or summative assessment and can consist of written examinations, class tests, essays, practicals, performance and other forms of that may be described by the course lecturer.

Examiners: academic staff members who are responsible for assessment functions that include setting, moderating and marking examination.

External examiner: an appropriately qualified, academic appointed on contract basis for examination and academic programme assessment and evaluation, and who is neither an employee of the university nor has any relationship with the university that may compromise his/her independent judgement.

Formative assessment: assessments used to enhance teaching and learning processes where the marks do not, and are not intended to, contribute to the grade for the course. These may be in the form of class tests or essays.

Internal examiners: academic staff members who are responsible for setting, moderating and marking examinations.

Internal assessor: an appropriately qualified, academic employee of the university who is not involved with the teaching of the subject matter that is being examined and who checks theflow, format and language.

Harassment: any act or conduct including spoken words, gestures or the production, display or circulation of written words, pictures or other material if the action or conduct is unwelcome and could reasonably be regarded as offensive, humiliating, coercive, threatening or intimidating.

Minor: any person who is aged below 18 years.

Orientation: an exercise where the university briefs students on programmes, rules and regulations, health and safety, facilities and services in the university.

Plagiarism: the act of using someone else's work, ideas, words, or creations without proper acknowledgement and presenting them as your own

Publication: the distribution of text, voice or images through any medium, including paper and the placing of content on a public notice board or electronic platform, or in a magazine, newsletter and any like item to make the content publicly known.

Sexual harassment: any form of unwanted verbal, non-verbal or physical conduct of a sexual nature in circumstances in which a reasonable person, having regard to all the circumstances, would have anticipated that the other person would be offended, humiliated or intimidated.

Sexual orientation: a person's identity in relation to the gender or genders to which they are sexualy attracted.

Summative assessment: a part of formal final assessment in which marks obtained will contribute to the final result of the module in such proportions as may be determined by the university.

1 INTRODUCTION

In order to maintain appropriate conduct and high academic standards, specific rules, regulations and guidelines are necessary. These rules, regulations, procedures and guidelines are designed to ensure that high quality standards of education and qualifications are promoted, protected and upheld, that all students have an enabling environment to successfully complete their studies, and that individuals' fundamental rights and freedoms are at all times respected and safeguarded as enshrined in the constitution of the Republic of Malawi.

Staff and students are expected to adhere to these rules and regulations and, as a general principle, to conduct themselves at all times, whether on campus or out of campus, in a manner that would perpetuate both their good image and the university's good reputation.

2 IMPLEMENTATION OF THE RULES

University officers and other staff members charged with the administration of these rules and regulations shall at all times seek to implement them in the spirit of the University Act, and shall in particular have regard to the following principles:

2.1 The university is a society in which high standards of academic and communal life must be established and maintained for the benefit of both present and future members of the university.

2.2 A high level of personal integrity and a sense of responsibility towards duty and other individuals are as important to the university as outstanding scholastic achievements.

2.3 A proper concern for the reputation of the university and what it stands for makes it incumbent upon its members to live decent and orderly lives.

2.4 Individual or collective actions by members of the university that constitute a breach of these rules and regulations shall be subject to disciplinary action and, where applicable, criminal prosecution, notwithstanding that the motive or goal of such action was justifiable in the belief of such members.

3 AMENDMENT

3.1 These rules and regulations may be amended from time to time at the discretion of the university.

3.2 The posting of notice of any amendment of these regulations on staff and students' portals and official communication channels of the university shall constitute proper and sufficient notice to all staff and students of the university of the amendment in question.

3.3 Ignorance of these rules and regulations contained is no excuse.

PART I:
STUDENTS' RULES AND REGULATIONS

4 REGISTRATION

4.1 Every student of the University of Malawi shall register within a period of seven (7) calendar days from the first day of each semester.

4.2 Any student who fails to register contrary to regulation 1.1 may register upon paying a late registration fee prescribed by the university from time to time, provided the registration is done not later than 14 calendar days from the last day of the designated orientation period.

4.3 Any student who fails to pay his/her financial contribution, tuition fees or any other fees as provided under "Financial Contribution and Other Payments," shall not be permitted to register.

4.4 Every student whose financial contributions or fees shall be paid through any loan scheme or scholarship shall be required to provide proof of the loan or scholarship approval before registration.

4.5 Any new student who, for valid reasons, is unable to take up his/her place at the university in a particular academic year may request to have his/her place reserved by submitting the request to the registrar no later than 14 days from the first day of the first semester of the academic year in which the student was expected to register.

4.6 A student who reserves a place for any reason will be required to write the Registrar and obtain a written acceptance prior to registration in the appropriate academic year.

4.7 A place shall be reserved for a maximum of one academic year unless, due to exceptional circumstances, the student may apply to the University for an extension of the period for another academic year.

4.8 Any student who does not take up his/her place until the expiry of the reservation period shall be required to file a new application for admission into the university which will be considered on the basis of the University Selection Criteria applicable at that time.

4.9 A student shall not change the name by which s/he is initially registered unless they provide official written documentation indicating that the change of name was effected in accordance with the law governing change of names in Malawi.

4.10 The university reserves the right to withhold registration of any student if it has reason to believe that the true identity of such a student cannot be established or verified.

4.11 Every student shall, upon registration, be issued with registration and account numbers which s/he shall use for identification and transactions for the duration of his/her studies at the university.

4.12 No student shall attend any lecture, seminar, tutorial, laboratory session or any other academic activity before s/he is properly registered in accordance with these Rules and Regulations.

5 DURATION OF PROGRAMMES

5.1 All university programmes shall be completed upon fulfilling all the requirements in a manner prescribed by Senate.

5.2 The Senate of the University shall authorise the de-registration of any student who fails to complete their programme of study as prescribed in Regulation 2.1 or shall permit the student to restart the programme.

6 FINANCIAL CONTRIBUTIONS AND OTHER PAYMENTS

6.1 All students shall, prior to registration, pay non-refundable financial contributions and fees, which shall include contributions towards medical insurance and whose amount shall be prescribed by the university from time to time.

6.2 All students shall pay a Students' Body fee and any other fees as may be prescribed by the university from time to time.

6.3 Every student has a personal responsibility to seek and secure his/her own sponsorship in which regard the university is not obliged to assist the student.

7 ACADEMIC DISHONESTY

7.1 All forms of academic dishonesty are prohibited and when a student is proven guilty, penalties shall include suspension or dismissal from the university. Acts of academic dishonesty shall include:

A. PLAGIARISM

- Deliberate use of any sources, i.e., any work, published or unpublished, by any person other than the student, without proper acknowledgement is forbidden because it is a misrepresentation of the material as the student's original work.
- To ensure that work is free from plagiarism students should properly cite any quotes or ideas derived from the work of others by using applicable referencing procedures.
- The use of several short quotations from different sources without appropriate identification is also considered plagiarism.
- Plagiarism includes but is not limited to the following:

    i. Copying someone else's work word for word, or cut-and-pastes from the internet, without proper referencing.

    ii. Copying of sentences, paragraphs or creative products which are the work of other persons (including books, articles, theses);

    iii. Copying unpublished works, working papers, seminar and conference papers, internal reports, lecture notes or tapes without due acknowledgement;

    iv. Close paraphrasing, which involves changing only a few words or the order of information while retaining the same meaning.

v. Self-Plagiarism

a. It is strictly forbidden to submit the same work for multiple modules without proper credit and prior approval from the module lecturer. It is advisable for students to acknowledge and reference their own previously written work, whether it is their current or previous degree or qualification.

b. Students must confirm that their coursework is original and has not been submitted for any other qualification before submitting it.

vi. Contract Cheating

Contract cheating, that is, the unethical practice which involves hiring third parties, such as ghost-writers or essay mills, to complete academic work, is forbidden as it harms academic integrity and misrepresents a student's true abilities.

vii. Inappropriate Proofreading

a. Proofreading of assessed or examined work that exceeds the scope of correcting spelling and punctuation and results in the work no longer being considered the student's original creation, or involves any assistance in relation to the content of the written assignment, shall be considered an act of plagiarism.

b. It is not permissible for a proof-reader to assist a student with the following:

(1) Changing any part of the work with the intention of clarifying or developing the ideas and arguments
(2) Reducing the length of the work so that it falls within the stated word limit.
(3) Making major corrections relating to referencing.
(4) Correcting information within the work.
(5) Translating the work into English.
(6) Commenting on how well the work answers the question.

B. CHEATING IN TESTS AND EXAMINATIONS

Engaging in deceptive behaviour during tests or examinations, such as assuming someone else's identity or soliciting external assistance, is strictly prohibited.

Cheating in tests and examinations shall include:

i. bringing into an examination forbidden material such as textbooks, notes, dictionaries, calculators, phones, and computers, etc;
ii. possessing, referring to or having access to any material or device containing content under examination;
iii. acquiring, or attempting to acquire, possess or distribute examination questions for an upcoming examination;

iv. being caught with personal notes written on various surfaces, such as hands, clothes, phones, etc.;
v. being found with an examination paper obtained before the examination or an answer sheet or booklet with responses in the course of an examination;
vi. communicating by any means, with another candidate during an examination, or talking during an examination with any person who is not an invigilator;
vii. exchanging notes in the course of writing an examination;
viii. being found attempting to read another student's work during an examination or copying from or otherwise using another student's work in an examination or knowingly allowing another student to do so;
ix. consulting with another person about the examination, within or outside the confines of the examination room without permission is strictly prohibited;
x. giving or accepting assistance from any person who is not an examination invigilator inside the examination venue;
xi. being found using electronic devices such as mobile phones to access information during an examination where such use is forbidden.

C. UNREPORTED COLLABORATION ON WRITTEN ASSIGNMENTS

- Where collaboration is allowed by the lecturer for any assignment, the collaboration must be fully acknowledged and the extent of collaboration explained in a footnote.

- If collaboration is not allowed, individual students should do the work on their own.

D. COPYING CODE

- All students shall maintain academic integrity by avoiding dishonest acts such as copying code from external sources or fellow students or creating programmes that resemble the work of others.

- Failure to improperly name paraphrased material in programming shall be considered a breach of academic honesty and integrity.

- A programme may be considered plagiarized even though no single line is identical to any line of the source.

E. DECEPTIVE USE OF ARTIFICIAL INTELLIGENCE

- While students are strongly encouraged to develop their competence in using Artificial Intelligence, they must create their own original work, and materials generated by AI-powered systems such as ChatGPT shall not be considered authentic student creations.

- Submission of work generated by AI-powered systems shall constitute a breach of academic ethics, and may result in disciplinary action.

F. SUBMISSION OF FALSE DATA FOR PRACTICAL OR LAID WORK OR FALSE CITATION

- Creation of imaginary data for which no work was done; "improvement" of data so that the results of the study are in keeping with the expected outcome; and false citation—falsely attributing information or material to a source which does not exist or from which the material in question was never in fact obtained, are serious acts of academic dishonesty and shall not be condoned.

- Students are prohibited from faking or "cooking" data as the tendency is deceptive and obscures the discovery of scientific truth.

Other dishonest acts include:

i. Altering or falsifying any document or record for the purposes of gaining academic advantage for various assessments;
ii. Offering or giving money or any item or service to a university staff member or any other person to gain academic advantage for oneself or another person;
iii. Deliberate attempts to deceive about assessment lodgement times or word counts;
iv. Falsely indicating that one was present at a course work activity where attendance is required;
v. Completing an assessment task outside the conditions specified for the task.
vi. Aiding and abetting in any or all of the above.

G. THEFT OF ANOTHER STUDENT'S PAPER

"Theft" shall be construed to mean any unauthorised use of another student's paper—even if the paper is returned after use or consulted without approval from the owner. This category is really an extension of plagiarism only much worse than it because it may deprive the right student of a deserved grade in favour of the "thief."

H. PUBLISHING OR DISTRIBUTING ALTERED COURSE MATERIALS

Sharing or exchanging falsified or maliciously altered course materials such as lecture notes, slides, recordings, assignments, exams or answer keys is strictly prohibited. Violations of this policy may result in disciplinary action up to and including expulsion from the university.

Resolving Cases of Academic Dishonesty

The university shall address complaints and cases of academic dishonesty or violations of these regulations through both informal mediation and formal disciplinary action against the alleged perpetrators of the alleged academic dishonesty.

8 CLASS ATTENDANCE

8.1 All registered students for whom class, practical, examination attendance is required, shall attend classes regularly.

8.2 Any student who fails to attend more than 12 hours of classes within a module shall not be allowed to sit for any examination in that module.

8.3 A student who misses class work for a valid reason (such as illness, bereavement, etc) shall communicate this to his/her course lecturers through the Assistant Registrar/officer responsible for students' welfare or Director of Student Affairs as soon as is practically possible.

8.4 If an illness or injury is serious enough to cause a student to miss more than two weeks of class, it is advisable for him/her to request for Illness Withdrawal.

9 RESIDENCE[1]

9.1 All halls of residence are the property of the University of Malawi and only designated university officials have the prerogative to allocate any room to any student as seen fit.

9.2 The university reserves the right of admission to and periodic inspection of the halls of residence.

9.3 The university reserves the right to expel from a room any student who abuses or misuses the room in any hall of residence.

9.4 Every student shall abide by all university rules and regulations, including any accommodation specific regulation, upon being assigned institutional bed space.

9.5 Any student who suffers injury, loss, discomfort or any other adverse consequence resulting from the conduct of another student should report the matter to the hall representative and, if the problem persists, the Matron, Warden, Assistant Registrar (Student Welfare) or the Director of Student Affairs.

9.6 Every student allocated a room on campus shall remain in residence for the full duration of the semester unless s/he is withdrawn from the halls of residence.

9.7 Any student who is allocated university accommodation shall not be permitted to accommodate any other person in the allocated accommodation or to sublet the whole or any part of the students' halls of residence for financial consideration or otherwise.

9.8 No student shall be permitted to store or use any illegal drugs or any weapons, including firearms, in the halls of residence or any part of the campus of the university.

9.9 No student shall consume any liquor in any hall of residence.

[1] The University reserves the right to prepare additional regulations for management of specific hall of residence and the same shall be regarded as part of the student rules and regulations, including the prescription of accommodation fees.

9.10 Every student shall at all times ensure that lights, irons, heaters, any naked flames and any device or substance that may reasonably be expected to pose a fire hazard, is switched off, extinguished or otherwise disabled immediately after use and not left unattended at any time.

9.11 Candles shall be used in halls of residence and other university buildings only in cases of power blackouts and should be blown off immediately after power supply is restored.

9.12 All students have an obligation to care for all university facilities and shall be liable to compensate the university in full for any damage or loss caused to university property directly or as a result of their individual or group actions. Damage caused to rooms or facilities in the rooms shall be presumed to have been caused by the resident to whom such a room has been allocated unless the contrary is proven. Where two students share a room, responsibility for any damage or loss caused shall be shared equally between the two unless there is clear evidence that only one of them caused the damage or loss.

9.13 No student shall hold a party in/around any hall of residence or in/around a university building or facility unless this is specifically permitted in writing by the Registrar.

VISITORS TO HALLS OF RESIDENCE

9.14 No student shall host any person of the opposite sex in a room in any hall of residence at any time between 10.00 pm and 10.00 am.

9.15 No person other than university official visitors and students from other universities for whom prior permission from the Registrar has been granted, may spend a night in any hall of residence.

9.16 Every student shall be responsible for informing his/her guests of the university Rules and Regulations and will be held accountable for any breach of the same or for any other inappropriate conduct by their visitors.

RESIDENCE DURING VACATION

9.17 No student shall be permitted to reside in a university hall of residence during the period between the end of one regular semester and the beginning of the next unless such residence is required to enable the student, as part of the academic programme for which s/he is registered, to carry out or take part in specific tasks recommended by the relevant Head of Department and approved by the Registrar or his/her nominee. Whenever such permission has been granted the student or his/her sponsor(s) shall pay rentals as determined by the university.

9.18 Any student who is permitted to reside in a hall of residence in the period between semesters in accordance with Regulation 4.17 shall be bound by all prescribed rules and regulations.

Health and Safety in Halls of Residence

9.19 Every student, member of staff, visitor or any other person is prohibited from undertaking any action that would endanger the health, safety or personal security of other people in or around any hall of residence of the university including:

i. Possession of dangerous materials such as firearms, fireworks, chemicals, explosives, or potentially lethal weapons.

ii. Unauthorized entry by any person into a room other than the room to which s/he is allocated.
iii. Unauthorized possession of keys or campus identification cards or misuse of any campus locking or identification systems.
iv. Occupation of the roof of any campus building.
v. Connection of any equipment or appliance to an electrical or other university installed system in contravention of normal and reasonable safety standards.
vi. Use of immersion heaters on the university campus.
vii. Use of any appliance that draws more than one kilowatt of electrical power.

The Matron and Wardens

9.20 The university shall designate individuals to oversee activities in the halls of residence and discharge specific duties related to areas of student life which shall include, but not be limited to the following:

i. General welfare
ii. Discipline
iii. Domestic relations between and among students in the hall
iv. Liaison with relevant offices and individuals on specific issues, including academic matters.

10 DIRECTOR OF STUDENT AFFAIRS

10.1 The university shall have a Director of Student Affairs who shall have the mandate to promote and oversee the welfare of students in coordination and liaison with other officers of the university.

10.2 The Director of Student Affairs office shall have the following specific duties:

i. Counselling students;
ii. Providing academic support services to students;
iii. Liaising with employers on career and placement services available to students;
iv. Registering students' clubs, societies and associations in collaboration with Patrons and the Students' Representative Council (SRC);
v. Advising students on available financial aid schemes;
vi. Assisting students experiencing emergencies, including aiding students with disabilities;
vii. Advising students, any groups or student organization on recreational activities;
viii. In liaison with the university administration, assisting with coordination of matters relating to accommodation and general housing of students;
ix. Coordinating programmes dealing with student exchanges;
x. Making available to the university community and society data regarding students' growth and development as well as data on student demographics in liaison with the Registrar;
xi. Providing consultation to schools and administration on a wide range of issues pertaining to students; and
xii. Performing any other duties incidental to the duties enumerated above.

10.3 Every student has the right to have direct access to the office of Director of Student Affairs.

11 IDENTIFICATION CARDS

11.1 Students, members of staff of the university and any person performing services for the university on the premises of the university shall present an identity card when so required. Students will be required to meet cost of replacement of initial identity card.

12 CLASSROOMS

12.1 All users of class/lecture rooms and any such places shall leave the rooms in good order after use.

12.2 No person shall remove any furniture or any other university property from any lecture room, laboratory, library, lecture theatres or any such places.

12.3 Every student shall switch off any mobile phone or other telecommunication device in his/her possession during the course of any lecture, laboratory session, seminar, tutorial, examination or other academic activity.

12.4 No person shall use any specialized rooms, including laboratories, audio-visual rooms, studios and any like rooms without prior permission from the relevant university authority.

12.5 No student or group of students shall use any university room used for academic activities for extracurricular activities without prior permission from the Registrar.

12.6 Every user of any university room shall ensure that lights, fans, air conditioners and any electronic equipment or devices that are not required to continue working are switched off prior to leaving the room.

13 GENERAL HEALTH AND SAFETY

13.1.1 The University shall endeavour to:

i. provide and maintain a safe learning environment by implementing structures and programmes to ensure that hazards to health and safety are identified in a systematic manner and timely acted upon;

ii. provide fire prevention and safety training to all staff and students, including simulated fire and emergency drills from time to time as advised by the university;

iii. comply with the requirements of all laws and university policies governing occupational health and safety;

iv. take proactive measures to ensure responsible environmental management on its premises; and

v. ensure that contractors undertake their duties in a safe and responsible manner.

13.2 In addition to the foregoing:

i. Students may undergo medical examination at an appropriate health facility as arranged by the university when need arises.

ii. Every student shall, during the course of the semester, seek medical assistance from the University Health Unit or recommended facilities prior to seeking medical treatment from other units.

iii. Hospitalisation of any students shall be done according to the medical cover provided by UNIMED.

14 INSURANCE FOR STUDENTS

14.1 The University shall from time to time prescribe the maximum claimable value under any insurance cover provided by UNIMED.

14.2 Any property left unattended in any part of the premises of the university is left at the owner's risk.

14.3 Any property left in any hall of residence during the holiday period between semesters is left at the owner's risk.

14.4 The university and any of its security service providers shall not cover damage or loss to personal gadgets.

Health Insurance for Students

14.5 The university shall facilitate the provision of private medical aid or insurance coverage to students travelling on official trips.

14.6 Registered students shall be required to have health insurance and the premium may be included in their academic fees or separated as determined by Senate from time to time.

14.7 Sports medical insurance cover shall only be provided to students only where such students participate in sporting activities duly authorised by the university.

Exclusions to Health Insurance

14.8 All exclusions shall apply as provided by the health insurer from time to time.

15 DEATH OF A STUDENT

15.1 All funeral arrangements relating to the death of a student shall be handled as provided in the University Administration Operating Manual.

16 ALCOHOL

Individuals must maintain responsibility for their own decisions and actions regarding the use of alcoholic beverages and should be prepared to accept the consequences associated with any violation of institutional policy or state and local laws.

16.1 No person or group of persons shall sell, serve or assist any other person to sell or serve liquor on the university campus unless the requirements of all applicable laws on selling and consumption of alcohol have been complied with; and permission to sell or serve, as the case may be, has been granted by the Vice-Chancellor or his nominee.

16.2 All university bars shall abide by all applicable laws regulating the selling and consumption of alcohol.

16.3 University bars shall be required to operate within a specified number of hours per day as prescribed by the university rules from time to time.

16.4 A student shall not wilfully cause or attempt to cause another student to be intoxicated on the university campus.

16.5 A student shall not have any alcoholic drink at, or bring any alcoholic drink to, any event where the university, or an authorised agent of the university, has prohibited the sale or serving of alcoholic drinks.

16.6 No minor shall possess or consume alcohol on any premises under the control of the university.

17 HARASSMENT

17.1 Harassment of any sort is strictly prohibited at the University of Malawi. Examples of harassment include:

i. Verbal harassment- such as jokes, comments, ridicule or songs that are offensive or unwelcome regarding a person's national origin, race, colour, religion, age, sex, sexual orientation, pregnancy, appearance, disability, gender identity or expression, marital status or other protected status, including epithets, slurs and negative stereotyping

ii. Nonverbal harassment, including –

a. distribution, display or discussion of any written or graphic material, such as through electronic media, notices, posters, emblems or badges, that ridicules, denigrates, insults, belittles or shows hostility, aversion or disrespect toward an individual or group because of national origin, race, colour, religion, age, gender, sexual orientation, pregnancy, appearance, disability, sexual identity, marital status or other protected status;
b. intimidatory harassment, such as gestures, posturing or threatening poses;
c. isolation or exclusion from social activities; or
d. pressure to behave in a manner that the person thinks is inappropriate, for example being required to dress in a manner unsuited to a person’s ethnic or religious background.

iii. Physical harassment, such as jostling, shoving or any form of assault.

18 CHANNELS OF COMMUNICATION

18.1 All communication made by any student to any person or institution outside the university on behalf of societies, clubs and other groups operating within the University must be made through the officers of the university.

18.2 All communication from any student in his/her personal capacity to outsiders should clearly state that the views expressed therein are not of the university.

18.3 All invitations to guests of honour from outside the university to functions organized by students must be made through the office of the Director of Student Affairs.

18.4 All communication from students to the Vice-Chancellor must be through the office of the Director of Student Affairs.

19 PUBLICATIONS

While the Malawi Constitution allows for freedom of expression and the press, every individual's freedom is constrained by legal and ethical considerations. Publications must therefore observe the following Code of Ethics so that they inform the community fairly and truthfully.

19.1 All student publications shall expressly state on their editorial page that the opinions therein expressed are not those of the university

19.2 All publications shall disclose the authentic names of their editors and authors.

19.3 Any publication originating from any club or society shall, before it is printed, published or distributed, be approved by a patron who shall be an academic member of staff.

19.4 In the presentation of news and comments in any publication originating from any student of the university there shall be no wilful departure from facts through distortion, significant omissions, undue summarization or exaggeration.

19.5 Rumour, unconfirmed news and comments in any publication originating from any student of the university should be clearly identified, distinguished and presented as such.

19.6 Every student publication shall check, as far as practicable, the accuracy of a news item before publication.

19.7 Any publication originating from a university student shall publish as facts only that which is reasonably believed to be true, having regard to the source, and such facts shall be published fairly with due regard to their context and importance.

19.8 Headlines shall reflect fairly the content of the news report or article over which they appear.

19.9 No publication originating from a university student shall publish obscene, defamatory, salacious or pornographic content.

19.10 No student shall tamper with official print or electronic notices.

20 USE OF UNIVERSITY TRANSPORT

20.1 University transport may be used for approved trips by the organizers of any student association or organization affiliated to the Students' Representative Council at such charge as the Registrar may determine from time to time.

20.2 The patron of any student association or organization or his appointee shall accompany members of the association or organization on all trips.

20.3 All requests for use of transport must be submitted in writing to the Registrar through the Logistics Officer at least two working days before the date of the proposed travel.

20.4 Any request for the use of university transport shall include the following:

i. The destination and purpose of the journey.

ii. The date and time when the transport will be required.

iii. The expected date and time of return.

iv. The full names and registration numbers of students travelling on the trip.

v. The full name, registration number and signature of the organizer of the trip who shall be responsible for hire payments to the Finance Office before the trip is made.

vi. Name and signature of the Patron who shall be an academic member of staff.

20.5 The Registrar shall not approve the use of university transport by members of any association or organization unless the chairperson or president of the association or organization that requests such transport signs an undertaking to be held responsible for any damage or loss caused during the trip by any conduct of any member of the group and any act committed by any person on the trip which might bring the name of the university into disrepute.

20.6 Members of the executive committee of any organization or association that is granted permission to use university transport shall ensure that the vehicle provided is not overloaded and that no driver employed or hired by the university shall drive any vehicle if it exceeds its prescribed maximum number of passengers.

20.7 The Students' Representative Council, in liaison with the organizers of any trip undertaken by any of its affiliates, shall ensure that university vehicles are not vandalized.

20.8 The registrar shall not authorize the use of university vehicles for travel by students to political functions.

20.9 Students travelling on university business using public transport shall be required to travel by coach.

21 CONDUCT AND BEHAVIOUR

There are various forms of behaviour about which it is impossible to frame precise rules, but which are nevertheless of such kind that they are likely to bring the university into disrepute or would discredit the good name or are prejudicial to the peace, good order and good governance of the university.

Any such conduct within or outside the precincts of the university shall be considered a breach of university discipline and will be punishable as such, whether or not it attracts the attention of the police. Acts of misconduct shall include, but shall not be limited to, the following:

21.1 Playing any musical instrument, radios, tape recorders, televisions, compact disc or cassette players, walkie-talkies or any other such instruments at loud volumes that may inconvenience others.

21.2 Conduct that intentionally obstructs or disrupts teaching or freedom of movement or other lawful activities on the university campus.

21.3 Engaging in deceptive behaviour during tests or examinations, such as assuming someone else's identity or soliciting external assistance.

21.4 Mobilising or inciting others to engage in any unlawful activity, which mobilization or incitement leads directly to such unlawful conduct on any campus of the university.

21.5 If a group of students with common intention commits any offence each member of the group shall be held liable for such offence regardless of the fact that only one or more of the students in the group can be identified.

21.6 Malicious damage or misuse of property whether such property is located on or outside any campus of the university, including, but not limited to vandalism, interference with electrical fittings, unauthorised use of telephones and unauthorised use of water and electricity in all campus facilities.

21.7 Theft and receiving or concealment of property with knowledge or reasonable suspicion that it has been stolen.

21.8 Defamation.

21.9 Any student may also be liable for acts against the University Student Disciplinary Committee which may include:

i. Failure to attend, without valid reasons, a meeting of the Student Disciplinary Committee when summoned to do so in writing by the secretary of the committee.

ii. Withholding information that would assist in the proceedings of any hearing by the Student Disciplinary Committee.

iii. Wilful obstruction of the work or proceedings of the Student Disciplinary Committee or interference with witnesses or evidence.

iv. Failure to abide by the ruling, decision, and penalty made or imposed by the Student Disciplinary Committee or any other committee of Senate.

21.10 Trespassing on university property or property that belongs to or is in the lawful possession or control of any other student, member of staff or visitor of the university.

21.11 Physical abuse of any person, or conduct intended to threaten imminent bodily harm or to endanger the health or safety of any person on or outside the university campus.

21.12 Unlawful conduct of a sexual nature including, but not limited to: rape, sexual assault, or sexual harassment; indecent exposure or behaviour; production or distribution of pornography; prostitution, or loitering for the purpose of soliciting or engaging in any unlawful act or conduct.

21.13 Conduct on the university campus constituting a sexual offence, whether forcible or non-forcible.

21.14 Gaining unauthorised access to any electronically held data, network, programme, or any other form of computer hacking, or the deliberate transportation or creation of any form of computer virus or worm.

21.15 Use of abusive language.

21.16 All forms of academic misconduct, including but not limited to, cheating, fabrication, plagiarism, any form of bribery, or facilitating academic dishonesty as may be further specified by Senate.

21.17 Forgery, collection of money in exchange for use of university property or processes, alteration, or misuse of any university document, record, key, electronic device, or identification.

21.18 Any act which

i. Constitutes a breach of the University Act and Statutes, regulations or rules
ii. Interferes with the governance or proper administration of the university.
iii. Brings or has the potential to bring the university into disrepute.

22 STUDENTS' PROTESTS AND DEMONSTRATIONS

The University supports the rights of students and staff to assemble and express their views. However, any protest or demonstration must be within the law and must not block streets, right of way, or sidewalks; jeopardize the safety of individuals or the integrity of the university or other property; or intimidate, harass, or threaten any member of the public.

23 STUDENT DISCIPLINARY COMMITTEE

23.1 The university shall have a Student Disciplinary Committee which shall be responsible for considering cases of misconduct by students and making recommendations to the Vice-Chancellor for a final decision after hearing the student or students against whom misconduct is alleged.

23.2 The Student Disciplinary Committee shall comprise members as prescribed in the Statutes.

23.3 The vice-chancellor or any officer acting on his/her behalf shall determine the penalty to be imposed on any student who is found guilty of misconduct or any other violation of these regulations, taking into account the recommendations of the Student Disciplinary Committee, the gravity of the offence and the student's previous record.

24 PROCEDURE OF THE STUDENT DISCIPLINARY COMMITTEE

24.1 The quorum for meetings of the Students Disciplinary Committee shall be two thirds of the members with voting rights.

24.2 The Student Disciplinary Committee shall make such procedural regulations for the running of its meetings as it deems fit provided that such regulations are consistent with the University Act and University Statutes.

24.3 Four representatives of the executive committee of the Students' Representative Council and the advisor of Students Representative Council who shall all sit as observers throughout the hearing process .

25 DISCIPLINARY MEASURES

Any student who commits acts of misconduct or otherwise contravenes any university rule, regulation, procedure, policy, standard of conduct or order may be liable to one or more disciplinary measures which shall include, but shall not be limited to the following:

Warnings and Reprimands

25.1 Written reprimand and warning which include a statement that continuation or repetition of the specific misconduct or other contravention will result in one or more of the more serious disciplinary sanctions, including restitution, suspension or dismissal.

Restitution

25.2 Financial or other compensation for damage or other loss of property and for injury to persons or institutions.

Withdrawal from Halls of Residence

25.3 Eviction of the student from the halls of residence for a designated period.

Forfeiture

25.4 Termination of any entitlement to a scholarship or other award for a specified period.

Suspension

25.5 Compulsory withdrawal from the university for such a period and upon such conditions as the Vice-Chancellor may impose following a disciplinary hearing against the student for misconduct or other contravention of any university rule, regulation, procedure, policy, standard of conduct or order.

25.6 Any student involved in malicious damage of property, arson or attempted arson, threat to life and bodily harm to any member of the university or involved in any gross criminal actions shall be suspended immediately pending disciplinary hearing.

Dismissal from the University

25.7 Termination of a student's enrolment for misconduct or other contravention of any university rule, regulation, procedure, policy, standard of conduct or order.

26 RULES AND PROCEDURES IN DISCIPLINARY PROCEEDINGS BEFORE THE STUDENT DISCIPLINARY COMMITTEE

26.1 The chairperson of the Student Disciplinary Committee shall regulate proceedings in a manner as simple and informal as possible within the procedural regulations that are best fitted to do substantial justice.

26.2 The Student Disciplinary Committee shall conduct all disciplinary hearings in accordance with the principles of natural justice and shall more particularly ensure that every student charged with misconduct or other breach of these regulations shall:

i. be informed of the charge or charges that s/he has to answer and the details of the charge or charges not less than three working days before the commencement of the proceedings relating to the charge or charges;

ii. be furnished with a full and fair opportunity to respond to the allegations of misconduct or breach of regulations as are made against him or her;

iii. be permitted to present any relevant facts or call any competent witnesses to testify on his/her behalf;

iv. be permitted to be present at all stages of the proceedings save when the Committee is deliberating upon its decision on the matter

v. be informed in writing of the verdict by the Vice-Chancellor on the charges and the reasons for that verdict as soon as is practicable.

26.3 Decisions of the disciplinary hearing will be made based on a simple majority vote of the committee with the exception of observers who shall not be allowed to vote.

26.4 A notice to a student summoning him/her to appear before the committee shall be contained in a letter addressed to him/her and advising him/her of the hearing:

i. the place at which s/he is to attend the hearing.

ii. the date and time provided that the date shall not be less than 3 days from the date of such notice unless, in the opinion of the Vice-Chancellor, the matter requires to be dealt with urgently and expediently.

iii. Particulars of the offence s/he has to answer.

iv. his/her right to call witnesses to attend and give any relevant testimony on his/her behalf before the committee.

26.5 A member of the committee, who has acquired, other than in the course of his duties, knowledge of evidence in an investigation of misconduct to be heard before the committee, shall not participate in the hearing.

26.6 The committee shall find a student to have breached the rules on either the student's own admission or when it has been proved so at the conclusion of the hearing.

26.7 If the committee determines that the student has violated university rules, regulations, procedures, policies, standards of conduct or orders, it shall then determine the appropriate sanction to be imposed. When determining the appropriate sanction, the committee shall review the evidence presented at the hearing and the student's past record of conduct at the university.

26.8 No litigation shall be commenced with respect to matters that are under consideration by the Student Disciplinary Committee.

26.9 As soon as possible after the conclusion of a Student Disciplinary Committee hearing, the secretary shall submit to the Vice-Chancellor through the chairperson a full report that includes the conclusions of the committee on whether the charges relating to the hearing are proved and, where they are, recommendations on the penalty to be imposed on the offending student.

26.10 In deciding on the disciplinary action, the Vice-Chancellor will also among other relevant factors take into account past cases of misconduct.

26.11 The final decision of the Vice-Chancellor shall be communicated to the student and subsequently be posted through official communication channels of the university and sent to the parents or guardians of the student.

26.12 The verdict of the disciplinary hearing will be communicated to the student in writing within 96 hours from the last day of the hearing.

27 PROVISION FOR APPEAL

27.1 Aggrieved students may, within three weeks from the date of communicating the decision of the Student Disciplinary Committee, lodge their appeal for review of the decision to the Appeals Tribunal.

27.2 The decision of the Appeals Tribunal shall be final.

28 CLEARANCE

28.1 Every student shall return university property at the prescribed times or pay to the university the cost of such property in cases of loss or damage.

28.2 Any student who, without reasonable cause, fails to obtain clearance within the stipulated time or manner shall be liable to a fine whose amount shall be prescribed by the university from time to time and the same debited to their portal.

28.3 Every student shall settle in full all his/her debts with the university and the Students' Representative Council at the end of each semester and every student with outstanding university debt shall have his/her assessment results unprocessed.

28.4 The onus to check the portal for clearance at all times remains with the student.

29 UNIVERSITY STUDENTS' REPRESENTATIVE COUNCIL

29.1 The university shall have a Students' Representative Council that shall be governed by the University Act.

29.2 Every registered student of the University of Malawi shall pay the applicable Students' Representative Council subscription fee as prescribed by the Student Representative Council from time to time.

29.3 Election of office bearers for the Students' Representative Council shall be conducted in consultation with the Director of Student Affairs.

30 CLUBS AND SOCIETIES

30.1 Every student or group of students of the university shall have the right to form or join any club, society or organisation in accordance with these regulations.

30.2 No club, society, association or organization of students shall be established or operate on the campus of the university or be affiliated to the Students' Representative Council without first registering with the Director of Student Affairs and indicating to him/her the objectives of the group.

30.3 As much as the university appreciates the freedom of association, political functions such as rallies shall not be held on campus.

30.4 All religious clubs and societies shall be required to demonstrate the existence of parent institutions outside the campus and within Malawi before being registered. The university is not obliged to act as the headquarters of religious organisations.

30.5 Every student club, society, association or organization shall have a patron and an advisor who shall be an academic or senior administrative member of staff of the university.

30.6 No club, society, association or organization shall be established, operate in the university or obtain funds from the Students' Representative Council or any other source unless the Director of Student Affairs is satisfied that the club, society, association or organization exists for a lawful cause and has complied with the requirements of these regulations regarding the registration of student groups.

30.7 Any group of students that intends to organize a social event on or outside the campus of the university must register the event and the name of the student group responsible for organizing the event with the Registrar or Director of Student Affairs.

30.8 Any group of students that intends to organize a social event outside the campus of the university must seek prior permission for such event from the registrar through a written application submitted to the registrar through the patron or advisor of the group or such other suitable person from the university.

30.9 The patron or advisor of any student group or such other suitable person from the university who applies for permission for the group to organize a social event outside the campus of the university shall sign an undertaking that s/he will report any cases of student misconduct during the event to the Director of Student Affairs.

30.10 Members of any group of students that is permitted to organize a social event outside the campus of the university shall be accompanied to that event by the patron or advisor of the group or a member of staff or some responsible person approved by the Director of Student Affairs.

30.11 Any publication originating from any club or society of the university shall before it is printed, published or distributed, be approved by the patron or advisor of that club or society.

SPECIAL REGULATIONS BY UNIVERSITY OF MALAWI

31 CONDITIONS FOR WITHDRAWAL OTHER THAN ACADEMIC AND MISCONDUCT AND RE-ADMISSIONS

31.1 The university may permit a student to withdraw only on the following grounds and taking into consideration the merits of each particular case and the maximum duration of the programme.

Pregnancy

31.2 A student who becomes pregnant in the course of her studies shall, in her interest, report the pregnancy to the Director of Student Affairs or Warden who shall advise about medical check-ups and counselling if necessary.

31.3 Every pregnant student who opts to use medical services for her check-ups other than those provided by the university shall inform the Director of Student Affairs or Warden of that fact.

31.4 A student who becomes pregnant in the course of her programme shall be allowed to continue with her studies provided she is certified by a registered medical practitioner to be fit for the activities required by her academic programme.

31.5 A pregnant student should plan her withdrawal from the university in line with recommendations she receives from the university-approved Health Centre or Matron based on the medical check-ups but shall in any case withdraw from the university at least four weeks before the expected date of delivery.

31.6 Where there is a miscarriage or stillbirth, a student shall be allowed to return to her studies as soon as her health is deemed satisfactory by a certified medical practitioner.

31.7 No student of the university shall terminate her pregnancy in contravention of the law.

Illness

31.8 A student of the university may withdraw on medical grounds only if the head of the University Health Unit or an approved service provider of the University Medical Scheme has certified that they are unfit to continue with their studies.

Economic Withdrawal

31.9 A student of the university may withdraw on financial grounds on not more than one occasion during the course of the programme for which s/he is registered if such withdrawal is approved by the Deputy Vice-Chancellor.

Compassionate Withdrawal

31.10 A student of the university may, with the approval of the Vice-Chancellor, withdraw on compassionate grounds following illness, injury or bereavement.

Voluntary Withdrawal

31.11 A student who withdraws from the university with no valid reasons or contrary to the provisions of these regulations shall be deemed to have withdrawn voluntarily and shall be deregistered.

Re-Admission of Students

31.12 Every student who is permitted to withdraw from the university shall apply for re-admission before resuming the programme for which s/he was registered prior to the withdrawing and shall not resume such a programme without the approval of the Vice-Chancellor.

Re-admission for Pregnancy Withdrawal

31.13 A student who withdraws from the university on pregnancy grounds shall be readmitted into her programme of study only if she submits a satisfactory medical report from a registered medical practitioner.

31.14 Any student who withdraws from the university on the grounds of her pregnancy and is readmitted shall not be exempted from the rule that provides that any student who fails to attend more than 12 hours of classes within a module shall not sit for any examination in that module and shall not be permitted to rely on her withdrawal as grounds for appeal against any decision arising from the assessment of her academic performance.

31.15 Any student who withdraws from the university on the grounds of her pregnancy shall bear all financial costs associated with the pregnancy and resultant maternity needs.

Re-admission for Illness Withdrawal

31.16 Any student who withdrew or was withdrawn from the university on medical grounds and would like to be readmitted shall apply for readmission through the Registrar and shall be required to submit a medical report from a registered medical practitioner in support of their application.

Re-admission for Compassionate Withdrawal

31.17 Any student who withdraws from the university on compassionate grounds shall be readmitted with the approval of the Vice-Chancellor upon application for the same through to the Registrar and shall be required to submit a medical report from a registered medical practitioner in support of their application.

Re-admission for Economic Withdrawal

31.18 Every student who withdraws on financial grounds may be readmitted by the university after one academic year. If the withdrawal is for a period exceeding one academic year, the student shall not be readmitted except with the approval of the Vice-Chancellor.

Re-admission for Voluntary Withdrawal

31.19 Any student of the university who voluntarily withdraws from the university shall not be readmitted.

Re-admission after Suspension

31.20 Any student who is suspended shall be readmitted at the end of their suspension period.

31.21 Any student who is dismissed from the university of Malawi shall not be readmitted to pursue any studies within the University of Malawi.

Fees for Partial Completion of an Academic Year

31.22 Where a student does not complete an academic year upon registration, fees shall apply regardless of the reason for failure to complete the academic year.

31.23 Any student who withdraws up to four weeks into the semester shall be charged 30% of the prevailing tuition fees.

31.24 Any student who withdraws up to six weeks into the semester shall be charged 50% of the prevailing tuition fees.

31.25 Any student who withdraws beyond 6 weeks into the semester shall be charged 100% of the prevailing tuition fees.

PART II:
REGULATIONS ON THE CONTROL AND CONDUCT OF ASSESSMENTS, EXAMINATIONS AND PRE-EXAMINATION ADMINISTRATION

1 INTRODUCTION

1.1. Purpose

The University's "Rules and Regulations for Academic Assessment Under a Semester System" (Revised 2023) govern assessment and assessment-related matters. This document describes the implementation of the regulations applicable to assessment, tests and examinations. It also prescribes mechanisms to ensure that the necessary procedures are in place in terms of setting, security and administration of examinations. Procedures are also described in terms of which irregularities can be detected and/or dealt with appropriately, should they occur.

Members of the academic and administrative staff are expected to be familiar with the contents of this document. Rules regulating oral and practical assessments must be provided at the school level.

2 CONTROL OF ASSESSMENTS AND EXAMINATIONS

2.1 Responsible Officers

2.1.1 The Vice-Chancellor

As the officer mandated to provide overall strategic leadership and management of the University, the Vice-Chancellor (or in his absence, the Deputy Vice-Chancellor) has overall responsibility for the conduct of assessments at the University of Malawi.

The Vice-Chancellor or his/her appointee shall ensure:

1) That appropriate methods of assessment are in place for each candidate
2) That assessment papers/materials are prepared by internal examiners, approved by external examiners and printed in good time for final assessments
3) That examination booklets and other assessment materials are examined by internal examiners and that results for each candidate as approved by external examiners are made available for Senate
4) That accurate records for continuous assessment, along with all associated materials, are maintained and made available as required, particularly to external examiners
5) That proper arrangements are made for holding Senate meetings
6) Timely transmission of the recommendations of Senate

2.1.2 The Deputy Vice-Chancellor

As the officer accountable for strategic leadership and management of academic, research, outreach, consulting and library services, the Deputy Vice-Chancellor has full responsibility for the conduct of assessments at the University of Malawi, and shall ensure:

1) That appropriate assessment arrangements are made for each candidate, including any special requirements including, but not limited to, alternatives to printed material and/or examination booklets, additional time, special facilities and/or arrangements, and special assistance for special need students
2) Implementation of maximum security in all matters pertaining to assessments
3) That appropriate assessment arrangements are made for each candidate
4) That duplication of questions papers is done while always applying strict measures to ensure the confidentiality of the paper.
5) That examination venues are identified and prepared before the day of examinations

6) That examination timetables are prepared and made available to staff and students
7) That question papers are safely kept and delivered to examination rooms on the day the examination is written.
8) That proper arrangements have been made for invigilation.

Executive Deans
The Executive Dean of a school (or his/her delegated academic representative) is the chief examination officer of such a school and is ultimately responsible for examinations and related processes in departments that are within his/her jurisdiction.

3 PROCEDURES FOR CONDUCT OF EXAMINATIONS

An examination in a module must be conducted by one or more of the lecturers of such a module (internal examiners) and one or more internal moderator(s)/external examiner(s). Should this be impracticable as a result of the death, resignation, absence, illness or any other inability of the lecturer concerned, the Executive Dean of the school in question, in consultation with the head of the department concerned, may make necessary arrangements for the conduct of the examination.

In the case of a course in which the teaching is shared by a number of academic staff members, the appropriate Head of Department shall nominate an academic staff member as internal examiner for that module.

3.1 Setting of Examination Papers

3.1.1 The Examiners

The examiners shall be the following:

a) Internal examiners
   Such members of the teaching staff of the University as appointed by Heads of Department

b) Internal moderators
   Members of the teaching staff of the university who are competent, qualified and experienced in a particular discipline/ field.
c) External Examiners
   Qualified external academics appointed by senate

3.1.2 External Examiners

1) At least one external examiner shall normally be appointed in each mor group of courses studied by candidates for diplomas and degrees of the university.
2) An external examiner must be a duly qualified person who is not engaged in teaching in the university.
3) External examiners for all diplomas and degrees shall be appointed by senate on the recommendation of the Academic Planning and Policy Committee (APPC) each year.
4) External examiners shall be appointed for not more than three consecutive years.

5) A former member of staff may not normally be appointed as an external examiner until at least three years after leaving the university's appointment.
6) Details of the duties of the external examiner shall be those discussed and arranged between the examiner and the relevant Head of Department, subject to any rules or guidance as may be laid down by senate from time to time.
7) Each external examiner shall submit a short written report to the Vice-Chancellor on completion of his/her examination in which he/she shall comment on the general standard of the examination and on the performance of the candidates.
8) The principle role of the external examiner is to ensure that the standards of the university's assessments are adequate and to maintain uniformity of standards as far as is practicable from year to year.

3.1.3 Duties of Examiners

A. Internal Examiners

The duties of the Internal Examiner are to, among others:

1) Draft the examination papers

   i. Internal examiners are responsible for the drafting of examination papers, as well as for editing and translating the examination paper(s). The internal and external examiners are, however, jointly responsible for the overall quality of the examination paper(s).
   ii. Examination papers must contain clear instructions and mark allocations. Where text material is used, it must be attached to the examination paper in typed form.

   The following information must appear on the cover sheet of an examination paper:

- clear and complete official headings (university and school)
- name of the department
- correct official course code and description
- names of the respective internal examiners
- date of the assessment opportunity
- duration of the assessment
- total marks
- number of pages
- detailed information on teaching materials that may be used during the examination
- whether rough work may be done on the examination paper (this must also be communicated to the invigilator(s) concerned).

   iii. An examination in a final-year module (first- and second-semester courses) at undergraduate level and all postgraduate modules must be conducted by one or more internal examiner(s) of such a course, as well as an external examiner.

2) Submit draft question papers to the Head of Department

i. Question papers must be submitted by the internal examiners to the Head of Department, together with model solutions and marking schemes where required, in a form and by dates prescribed by the Head of Department.
ii. All examinations and examination papers must be distinguished by different and distinct titles.

3) Finalize the examination paper with due consideration of the comments provided by the internal moderator/external examiner;
4) Ensure that the paper has been correctly duplicated;
5) Be at the examination venue at the commencement of the examination to answer any questions that may arise (staff members within a department must make arrangements in this regard amongst themselves, should an examination take place in more than one venue);
6) Be reachable for the duration of the examination;
7) Collect the examination answer scripts either from the registrar's office or that of his/her appointee, or from the examination venue after the examination;
8) Mark and grade the examination answer scripts;
9) Propose grades to be awarded to each candidate;
10) Send the marked scripts to the internal moderator/external examiner for moderation and examination; and
11) Attend and contribute to the deliberations of meetings of the appropriate assessment committees.

B. External Examiners and Internal Moderators

When setting examinations, the internal examiner shall use the services of external examiners or internal moderators. The purpose of external examination and internal moderation at this stage is to ensure that students are assessed in a consistent, accurate and well-designed manner (i.e., fair, valid and reliable). In this regard, an external examiner/ internal moderator shall:

1) Determine the extent to which the curriculum is covered by the examination paper;
2) Determine the relevance of the examination paper to the subject matter covered;
3) Comment on the standard of the module as reflected by the examination paper and/or the oral and/or the practical examination and on whether the paper covers the curriculum;
4) Determine whether the level of difficulty of the questions is up to standard;
5) Determine whether the length of the examination paper is appropriate for the time allowed;
6) Make suggestions, criticisms, deletions, additions or amendments; and
7) Agree with the internal examiners on the most appropriate ways of achieving compliance with the highest internationally accepted academic standards.

> **NOTE:** To achieve the above in relation to assessments, executive deans, heads of department and module lecturers shall ensure that external examiners are provided with information detailing the syllabuses, aims, objectives and structures of all programmes and courses at such time as to allow adequate opportunity for full assimilation of the information provided and to enable the external examiners to take into account the implications of individual assessment instruments on the overall academic curricula concerned.

Should external examination take place after marking, external examiners shall, among others:

8) Examine by means of a sampling (a minimum of 5, but not more than 25 scripts per course) the standard of the answers and the quality of the evaluation of the scripts; and
9) Determine the standard reached by students.

3.2 Handling of Examination Papers

3.2.1 Typing of Examination Papers

Examination papers shall be typed within the department/school by a suitably responsible staff member.

3.2.2 Duplication of Examination Papers

Examination papers shall be submitted by Heads of Department to the Registrar for purposes of duplication while observing strict measures to ensure the confidentiality of the paper.

3.2.3 Storage and Dispatch of Examination Papers to Examination Venues

1) The Registrar is accountable for copying, storing and dispatching examination papers to examination venues.
2) Before storage, the relevant lecturer(s) or Heads of Department must ensure that the examination papers have been correctly copied and packed according to the number of venues in which the examination will be written. Should this necessitate breaking the seal of the envelope and/or container, the lecturer(s) must seal it again after checking the papers and place his/her signature over the seal.
3) The Registrar must take all appropriate measures to ensure that the confidentiality of the examination papers is not compromised.
4) The Registrar must keep duplicated examination papers in sealed envelopes and/or a sealed container that must be locked away at all times.
5) Chief invigilators must ensure that examination papers are taken to the examination venues 30 minutes prior to the commencement of the examination.
6) The sealed envelope and/or container may only be opened in the examination venue. Examinations may not continue if the envelope and/or container were not sealed as the tampering with the seal indicates that the confidentiality of the paper may have been compromised.

3.2.4 Additional Copies of Examination Papers

The Registrar must submit copies of all examination papers to the library as soon as possible after the examinations. Any deviation in this regard must be approved by Senate as accountable and fair assessment requires transparency. The complete module codes, examiner's name, date of examination, etc., should be provided with each paper.

3.2.5 Preserving Security and Confidentiality of Examination and Class Test Question Papers

1) The Registrar, internal and external examiners/moderators must apply strict measures to ensure confidentiality of papers.
2) Papers in hard copy must be sealed in an envelope and/or container and must be securely locked away at all times.

3) The Head of Department is responsible for preserving confidentiality and security in formal examination or class test papers prepared in his/her department.

4) The Head of Department is accountable for security in the compiling and dispatching of draft formal examination or class test examination papers to external examiners in a secure manner.

5) Once the paper has been approved, the Head of Department must keep a paper trail related to the formal examination or class test examination papers for auditing and quality assurance purposes.

6) The Registrar or Head of Department must ensure that copies of formal examination or class test examination papers are securely locked away at all times, and that no persons have unauthorised access to them.

7) Heads of Department should pay particular attention to the security of examination questions stored electronically, for example; these questions should not be stored in a form to which others may obtain access.

8) The Registrar must ensure that the duplication of formal examination or class test examination papers does not happen off campus, nor contracted out to third parties. Only departmental copier machines or the university's copy services may be used. If the latter is used, the paper may not be left with the copy services.

9) The number of persons engaged in the typing and/or duplicating of formal examination or class test examination papers must be kept to the absolute minimum. If papers are printed by the university's copy services, a representative of the department must be present for the duration of the printing. Part-time lecturers, interns and student tutors may not assist with the printing of formal examination or class test examination papers. All staff present during printing or duplication of examination papers must sign an attendance register.

10) The process of copying formal examination papers must be supervised at all times. Care must be taken that all copies of formal examination or class test examination papers (including master and spoilt copies, whether intermediate draft or final) are removed from the copier and securely locked away until they are destroyed. A register must be kept of the number of copies made, and this should be reconciled against paper copies to maintain the track of each paper. In cases where a printer stores print jobs in the memory, the main file must be deleted from the memory after printing.

11) Spoilt or surplus formal examination papers must be appropriately destroyed (e.g., by shredding or incinerating the papers). This includes all master and spoilt copies, whether intermediate draft or final.

12) Relatives or persons with any close personal relationship with a student writing an examination, must not be involved (or must recuse themselves) in the compiling, typing and/or copying of examinations.

3.2.6 Copyright of Examination Papers

The copyright of the examination papers belongs to the University of Malawi.

4 SCHEDULING OF EXAMINATIONS

4.1. End-of-Semester Examination Scheduling

1) End-of-semester examinations shall be held in the two or three-week period following the end of student reading time in the semester in which the course is taught.
2) The Registrar shall be responsible for drawing up the timetable.
3) The provisional schedule of end-of-semester examinations shall be published by the Registrar no later than four weeks prior to the commencement of the final examination. The schedule will be displayed on staff and student portals.
4) In as far as is feasible, the Registrar shall adjust the provisional schedule to resolve notified difficulties, taking into account any alternative solutions proposed by academic staff members and students concerned.
5) The final schedule of end-of-semester assessments shall be displayed on staff and student portals.
6) Care shall be taken to ensure as far as possible, that when two or more examinations are being held in one examination hall at any one session, the starting and finishing times of these examinations shall coincide.

4.2 Examination Arrangements for Students with Disabilities

1) All university staff are required to consider the needs of students with a disabilities in all assessments and examinations and to make any necessary and reasonable adjustments to ensure the accessibility of assessments for all students.

2) The registrar, and staff from the Special Needs Section are responsible for making the necessary arrangements for students with disabilities to undertake formal examinations, class tests, project work or continuous assessment.

3) Assessment of the needs of students with disabilities shall be carried out by the Special Needs Section, where evidence of a student's needs is held and discussed prior to recommendations being made to schools and departments about any necessary adjustments to assessments and examinations. Departments/Schools are advised to discuss these adjustments with the Special Needs Section and the student concerned if they feel that they can be improved on. Once agreed upon, these adjustments must be implemented. This ensures equity in treatment among students across the institution.

4) The RegistrarSpecial Needs Section shall be available to discuss individual students' examination and assessment needs with colleagues in Departments/Schools who have responsibility for setting and administering assessments and examinations.

5) Where a student has requirements that mean they do not sit an examination with the main cohort, their examination should overlap and, where possible, encompass the entire duration of the main cohort examination, although it may vary in start and end time or duration according to the reasonable adjustments agreed for a student. Every care must be taken to ensure that students from either exam cannot communicate for the duration of both examinations.

6) Where a student becomes disabled (for example, as the result of an accident) or only approaches the department/school or the Registrar to request support late on in the academic year, departments/schools retain an obligation to make any recommended

reasonable adjustments. What may be reasonable may be linked to the available time prior to the examination taking place, but that ensuring the student is not disadvantaged remains essential.

4.3 Online Examinations

Online examinations are permitted where the exam will be taken under invigilation. The same rigor applied to in-person examinations invigilation rules must be followed to ensure the integrity of online tests.

1) The responsibility for organisation and administration of examinations for online modules lies with the department/school responsible for delivery and administration of the online course in consultation with the registrar.
2) Where a specific slot is required and the timing of these falls within a main assessment period, they should be included as part of all other examinations for the purpose of central timetabling and clash checking.
3) Where the examination is taken online and on the university campus, enhanced support arrangements should be available to help the examination run smoothly.
4) Due diligence must be applied in considering possible risks and technical measures to prevent cheating.
5) Online examinations should preferably take place during office hours but where required after hours, an ICT technician must be present to assist with any technical queries and/or problems that are reported.

4.4 Practical Examinations

The running of practical and laboratory examinations shall be the responsibility of the internal examiners in the departments concerned and, if necessary, in consultation with the registrar.

5 ADMINISTRATION OF EXAMINATIONS

5.1 Invigilation

1) The registrar shall be responsible for drawing up a list of invigilators for each examination.
2) Invigilation is the responsibility of academic staff, and they must, therefore, take part in the invigilation of examinations and tests.
3) Invigilators are to be provided for each examination session as per the following guidelines:
   (i) Two invigilators for the first fifty students and one additional invigilator for every additional fifty students (or part thereof).
   (ii) At least one male and one female invigilator must be present in each venue. This ratio should be used as a guideline for providing invigilators for class tests.
4) There shall be a minimum of two invigilators per examination session in an examination venue at all times.
5) Each individual team shall have its chief invigilator who shall coordinate and oversee the invigilation.
6) An invigilator who defaults in his/her invigilation duties shall be guilty of professional misconduct.
7) Information Technology (IT) lab assistants are not responsible for invigilation during an examination or test.

5.1.1 Guidelines for Invigilation

1) Invigilators must arrive at the venue at least 30 minutes prior to the commencement of the examinations so that they can assist with preparations, receive instructions or make arrangements to ensure uninterrupted examinations.
2) The chief invigilator shall ensure that sealed examination papers reach the venue of the examinations and, not later than 30 minutes before the start of the examination, s/he shall open the envelope and arrange for the distribution of the papers to the desks by the invigilators.
3) The invigilators will distribute answer books/sheets and any other approved items to each desk.
4) If for any reason an examination cannot start as scheduled, the chief invigilator shall note the actual time when it begins and ensure that the correct time is allowed for the paper.
5) Invigilators should wear soft, comfortable shoes in the examination venue for their own comfort and to avoid disturbing candidates when walking around.
6) When the majority of the candidates are seated, one invigilator must remain at the entrance to assist latecomers.
7) The chief invigilator must see to it that candidates are spaced well apart during the session and, if more than one venue is occupied, that only those candidates who belong in the venue are present.
8) The chief invigilator has to ensure that the time allocated to candidates is adhered to.
9) Once the invigilator has announced the commencement of the test or examination, all conversation or any other form of communication between students must cease. During the course of the test or examination, no communication of any nature whatsoever may take place between students.
10) Invigilators must spread out and walk around in the venue to ensure proper supervision.
11) Only in exceptional circumstances will a student be given permission to leave the test or examination venue temporarily, and then only under the supervision of an invigilator.
12) Candidates may not take used or unused answer scripts from the test or examination venue.
13) Candidates shall be warned of the time by the chief invigilator, including 30 minutes and 10 minutes before the end of the examination. Each examination hall must have a clock placed where it can be easily seen by all candidates.
14) At the end of the examination, candidates must be told to stop writing, close their answer books and remain seated until these are collected by invigilators. *Invigilators must see that this instruction is carried out promptly*.
15) The chief invigilator may ask candidates to check that they have correctly completed the covers of their answer books.
16) Candidates must fill in their registration number in the space provided on the cover and pages of the answer book. Invigilators should not accept scripts that do not have the registration number provided.
17) Scripts must be collected by invigilators before the students are given permission to leave the venue. *It is not acceptable to collect books at the door*.

18) After the session, the answer scripts must be counted, and the total must correspond with the number of registered students. Under no circumstances may any answer script be removed from the venue before these numbers balance. *This task should not be delegated to anyone who is not an invigilator*.

19) At the end of the examination lecturers shall collect answer books for their examinations from the Registrar.

20) The chief invigilator must complete the session report forms for the entire venue.

5.2 Students Entry into the Examination Room/ Hall

1) Candidates must be punctual for the examinations at the times stated in the examination timetable.
2) Candidates will be allowed to enter the venue in reasonably good time (not later than five minutes before the start of the examination) so that commencement of the session is not delayed.
3) Should there be more than one entrance to a venue, all but one will be closed so that all candidates enter and exit the venue through the same entrance.
4) Candidates are obliged to identify themselves positively by means of a valid student card when writing a test or examination. No access to the test or examination venue will be allowed without a valid student card.
5) Each candidate entering the examination hall is required to occupy the seat allocated to him/her.
6) No candidate may enter the test or examination venue later than an hour after commencement of a test or examination session, provided that the chief invigilator may dispense with this rule in any case where he/she is satisfied that the candidate had no opportunity of communicating with any student who has already left the hall.
7) No person may pretend to be a registered student and/or write a test or examination on behalf of a student.
8) No candidate may leave the test or examination venue earlier than three quarters of an hour after commencement of a test or examination session except in cases of illness or other necessity.

5.3 Candidates' Behaviour and Handling of Examination Papers and Supplementary Materials

1) Candidates must not bring blotting or rough paper into the examination hall.
2) Apart from the normal writing materials, students will be allowed to take into the examination room only such materials as specified on the examination paper, and students should be notified before the examination of any such materials.
3) Unauthorised materials include:

   i. calculator covers,
   ii. pencil cases,
   iii. mobile phones,
   iv. Non prescribed calculators
   v. smart watches,
   vi. electronic devices not explicitly approved by the relevant academic staff member,
   vii. laptop bags or satchels,
   viii. handbags,

ix. books,
x. caps or headwear,
xi. any piece of paper, no matter how small, and
xii. notes of any nature whatsoever.

Mere possession of any of the aforementioned, irrespective of whether the student acted intentionally, negligently or innocently, is regarded as a serious transgression of the rules and subsequently as serious academic misconduct. It remains the student's responsibility to verify, prior to the commencement of a test or examination, that none of the aforementioned items are in his/her possession.

4) All answers must be written in the distributed answer books/sheets to which any supplementary answer books must be fastened.
5) Writing of any kind on clothing or any part of the body may be considered unauthorised material.
6) All authorised material, such as paper, examination booklets, graph paper, etc., will be provided by invigilators.
7) Writing on any paper other than that provided for test or examination purposes is strictly prohibited.
8) Rough work should be done in the test or examination answer script and then crossed out. No pages may be removed from the test or examination answer script.
9) Candidates shall not remove any of the authorised items from the examination venue.
10) Candidates must obey all the instructions given by an invigilator immediately and strictly.
11) Candidates may bring their own watches to the test/examination venue; however, smart watches will not be allowed.
12) No candidate may assist or attempt to assist another student, or obtain help, or attempt to obtain help from another student during a test or examination.
13) Candidates shall display their student identity cards on their desk or assigned work areas.
14) Each candidate is responsible for ensuring that his/her examination booklet and associated materials are in the possession of an invigilator before leaving the examination venue.
15) Candidates shall write their registration numbers clearly on all materials submitted to the invigilator.

5.4 Absence from or Leaving the Examination Hall Because of Illness

1) Any candidate who is unable to attend an examination on account of illness or other necessary cause must send a message to the invigilator, must consult a medical officer or nursing officer/clinical officer as soon as possible and must obtain an appropriate certificate testifying to the candidate's inability to write an examination.
2) No candidate will be allowed to leave the examination hall before three quarters of an hour from the start of the examination except in cases of illness or other necessity. The chief invigilator may readmit a candidate who has left the examination hall in case of illness or other necessity if satisfied that the candidate has not communicated with any unauthorised person.
3) The chief invigilator shall report to the Registrar the name of any candidate who leaves early on account of illness and the time of leaving (for transmission to the examiners).

5.5 Delivery of Completed Examination Scripts and Spare Examination Papers

1) The chief invigilator shall be responsible for distributing answer books/ scripts to the appropriate internal examiners who should sign for them as evidence that they have been received.
2) The chief invigilator shall deliver answer books/ scripts to the Registrar after the administration of the examinations.

5.6 Misconduct of Candidates in Examinations

1) It is a major offence to breach the examination regulations. Alleged breaches shall be dealt with immediately and with the seriousness they deserve.
2) When a candidate is found cheating in an examination, the chief invigilator shall confiscate or impound any evidence, get another invigilator to witness the alleged cheating and advise the candidate that until a final decision is made, he/she is free to continue writing the examination if he/she so wishes.
3) The chief invigilator shall write a report on the matter and submit it to the Registrar as soon as practicable.
4) The examination scripts related to the examination paper in which the candidate is alleged to have cheated shall not be marked before a decision is made, and the candidate shall not be informed of the results of his academic performance before such a decision is made.
5) Where an allegation of cheating is made after an examination has already been written, then all the evidence shall be obtained in writing and signed by the witness to the alleged cheating.
6) The evidence together with a written report shall be sent to the Registrar as soon as is practicable.

5.7 Disciplinary Action

1) There shall be a Senate Academic Disciplinary Committee which shall be chaired by the Deputy Vice-Chancellor or his/her appointee.
2) Executive Deans and the Head(s) of Department from whose school/department an a matter has occurred shall be members.
3) The suspect shall be invited to present his side of the case to the committee where persons who witnessed the alleged cheating shall be present as witnesses.
4) The Vice-Chancellor shall consider the report by the committee, and if he/she is satisfied with the guilt of the candidate or if there is proof beyond reasonable doubt, he/she shall have the power to impose a penalty on the candidate, including the power to suspend or dismiss him/her.
5) A candidate who is aggrieved by the decision of the Vice-Chancellor shall have the right to appeal to the Appeals Tribunal.
6) The decision of the Appeals Tribunal shall be final within the University.

6 ASSESSMENT PROCEDURES

6.1 Continuous Assessment

6.1.1 Publication of Results of Essays, Assignments etc

It shall be a practice to divulge to students the marks given for all forms of assessment, whether or not such work contributes to the final result for the course.

6.1.2 Student Access to Class Test Scripts and Assignments

1) A class test is a form of assessment, whether counting towards the final result or not, which is scheduled by the department during the teaching term.
2) Departments must allow students to see corrected class test/assignment scripts to:
   i. provide feedback to students on their performance before they are next examined on the same work;
   ii. give them the opportunity to detect errors in both marking and transcription, which may occur.

6.1.3 Student Access to Examination Scripts

Where work is examined under invigilation, the scripts will be retained by the department concerned and will not be returned to the students.

6. 2 End-of-Semester Examinations

6.2.1 Marking

1) Executive Deans or their delegated academic representatives must ensure that the people responsible for the marking of answer scripts have the required qualifications and competencies.
2) Heads of Department must ensure that the examination script-to-marker ratio is acceptable, viewed in light of the due date for handing in marks.
3) The due date for the finalisation of marking of scripts must be reasonable.

6.2.1.1 Using Student Tutors to Mark Undergraduate Work

1) The course lecturer (internal examiner) is accountable for the marking of all student work (examinations as well as coursework where the mark contributes to the final course mark). Marking provides the lecturer with valuable feedback on the teaching and learning in a course. It is, however, not possible in the large classes for the marking to be done solely by the course lecturers or other lecturers who participated in teaching the course.
2) Where the class size necessitates that student tutors (postgraduate or undergraduate) be used, the following guidelines apply:

   i. Preference should be given to suitable postgraduate tutors, but where no suitable postgraduate tutors are available, undergraduate tutors may be used.

   ii. The Head of Department must ascertain in advance whether student tutors will be used to assist with the marking. The Head of Department must be given the names of the

student tutors involved, an indication of which assessments (tests, essays, exams) they will be marking, and an indication of the number of scripts (tests, essays or exams) or questions each student tutor will be marking.

iii. Student tutors who will be required to mark in addition to tutoring must be given appropriate training to enable them to mark and provide useful feedback on the work marked in the case of in-course assessment.

iv. Where student tutors are used, it is expected that the lecturer calibrates the marking before the marking begins to ensure that all student tutors are clear on what is expected and that the marking is consistent. The lecturer is expected to extensively moderate the work marked by student tutors to ensure quality and consistency.

v. In the case of in-course assessments, the course lecturer should also obtain feedback from student tutors on the common errors or weaknesses in the scripts so that, where necessary, this can be recapped with the class.

vi. Having ensured that the guidelines above have been appropriately applied, the Head of Department must inform the Executive Dean of the modules where student tutors were used to mark.

6.2.2 External Examiner Visits

1) External examiners are expected to visit the university each academic year. The visit normally takes place at the time of determination of final results and should conform to the arrangements made in this regard by the university. Should an external examiner be unable to visit the university, full consultation shall take place between the external examiner and internal examiners, a written record of which shall be available to the Deputy Vice-Chancellor.

2) External Examiners will be provided with a representative sample of examination booklets and other material presented for assessment.

3) Drawn on the basis agreed upon between the internal and external examiners, the sample of material (a minimum of 5, but not more than 25 scripts per course) should be sufficient to enable the external examiners to form a judgement on the appropriateness of the marking at all levels of classification, in borderline cases and in failed results.

4) When visiting the university, external examiners shall:

   (i) Review the grades and, if deemed necessary, interview candidates as the external examiners see fit

   (ii) Agree with the respective internal examiners and confirm the list of candidates for pass or fail for consideration by the relevant assessment committees

   (iii) Submit a full report on the assessments with which they are involved. The report should be sent to the Deputy Vice-Chancellor and copied to the relevant Executive Dean and Head of Department and the eniversity shall ensure that all communications in relation to examinations are secure and confidential.

5) In the event of an unresolved matter between the external and internal examiner(s), Senate shall make the final decision on the matter.

6.2.3 Submission of Grades

1) Academic members of staff are encouraged to submit grades at the earliest opportunity following the completion of assessments in a course. Heads of Department shall make every effort to support academic staff in doing so.
2) The precise dates and deadlines in each semester will be confirmed by memo to all members of academic staff from the Registrar or his appointee.
3) The internal examiner shall review the completed grading list and shall submit the final grades in the prescribed manner and process. After the grades for a module have been submitted, they shall be available to the Head of Department and Executive Dean.
4) When all course grades have been submitted, the Head of Department shall call for a Departmental Assessment Committee meeting.

6.3 Assessment Meetings and Consideration of Grades

1) Examination assessment procedures in the University of Malawi shall be as follows:

   a. Grades shall be considered by a Departmental Assessment Committee comprising all members of staff involved in the teaching of courses in a meeting chaired by the Head of Department, which shall pass them on to
   b. School Assessment Committee meeting (of Heads and sister school representatives) chaired by the Executive Dean, which shall pass them on to
   c. Senate Assessment Committee chaired by the Vice-Chancellor or his appointee.
2) Meetings of Departmental and School Assessment Committees should allow for full and frank discussion of any individual cases before a final recommendation is made to Senate.
3) Decisions of the School Assessment Committee shall be submitted as recommendations to Senate which shall consider and have the right to adopt, modify or reject such recommendations.
4) At the meeting of Senate, a final results record shall be presented and endorsed. The record shall contain the cumulative performance of each candidate and, in relation to each candidate's overall result, shall indicate the level of award or that the student has been deferred or has failed.
5) Every effort shall be made by the internal examiner and external examiner examiners to agree on final grades prior to School and Senate Assessment meetings. An examiner who continues to dissent at the Departmental Assessment Committee meeting shall have the right to have his/her dissenting opinion appended to the results record to the School Assessment Committee meeting and/ or Senate.
6) Any dissenting opinion by an examiner that shall have been appended to the final results record shall be brought to the attention of Senate, whose decision in relation thereto shall be final.
7) Any academic progression (or failure thereof) of a student in the University is only legitimate when the student's performance record has been presented and approved by Senate.
8) The proceedings and deliberations of assessment committee meetings are strictly confidential. Under no circumstances should any person attending a meeting of an assessment committee disclose to any other person a decision of the committee or any document, information or opinion considered, conveyed or expressed at the meeting.

6. 4 General Rules on Grading

6.4.1 Grade Changes

1) In exceptional cases, a grade may be changed after the original grade has been submitted and approved by a Department or a School or Senate. Such grade alteration may occur when an academic staff member:
   (i) discovers an error in the grade,
   (ii) reviews overall or individual performance in a course on the advice of the external examiner,
   (iii) reviews an individual grade in response to a grade recheck request by a Departmental or School Assessment Committee, or.
   (iv) reviews an individual grade in response to a grade appeal request.
2) In cases where the grade change places the student in a different final award classification category, the Head of Department should ensure that the external examiner, if one was involved in the review of grades, is informed of the decision.
3) The academic staff member shall write a report for the grade alteration and state the reasons for the alteration.
4) The Head of Department or his/her nominee shall append his/her signature confirming and/or recommending the grade alteration before the alteration is approved by the appropriate chair of the Committee that approved the results.

6.4.2 Grade Recheck and Review

1) Should a student consider that s/he may have been assigned an incorrect grade, possibly as a result of a computational error, he/she may request a recheck of the grade within five (5) days of the relevant semester results becoming available.
2) To request a recheck, the student must make the appropriate application in the prescribed manner[2] and pay a fee, the amount of which shall be determined by the university from time to time.
3) A grade recheck cannot be carried out on those parts of an assessment where sufficient records and evidence are not available to permit regrading.
4) The following procedure shall be followed by the academic staff member responsible for the relevant course:

   (i) Cross-check the grade entered and the original assignment submission(s).
   (ii) Regrade the examination and/or assignment to establish whether or not the original mark/grade awarded was correct.
   (iii) Where a sufficient and intact record of the original assignment is not available, the original mark/grade assigned to that element of the assessment shall remain.
   (iv) Check to ensure that marks given to individual elements of the assessment are included in the total marks.
   (v) Check that the original total mark, where applicable, is accurate and that the grade awarded is correct.

5) Where the decision is to change the grade, the academic staff member responsible shall communicate the decision to the Head of Department for his/her authorisation and the

[2] Registrar to ensure availability of means of application

Head of Department shall return a signed approval on the recheck request form to the academic staff member.

6) The academic staff member shall in the prescribed manner report action taken within three weeks of the publication of results for the semester in which the request is lodged.
7) Should the grade recheck so determine, grades may be changed to lower or higher grades.

6. 6 Preservation of Examination Scripts

Examination scripts on which decisions have been taken by the appropriate assessment committees shall be retained by the respective Heads of Department for one year and thereafter they can be destroyed.

7 REGULATIONS AND GUIDELINES ON ACADEMIC APPEALS

Every student has the right to appeal on academic decisions if s/he thinks s/he has been assessed unfairly.

The university shall ensure that all appeals are heard.

7.1 Substantive Appeals Other Than for Remarking

1) An Appeals Tribunal shall hear an appellant either orally or in writing and shall demand all such information or evidence as it may consider necessary.
2) Where an appellant chooses to be heard orally, he/she shall bear personal costs in making such an appearance before the Appeals Tribunal.
3) All written evidence in support of every appeal shall be made available to the Appeals Tribunal.
4) The appellant must clearly state the grounds of their appeal and any supporting evidence must be submitted together with the written appeal.
5) The Appeals Tribunal shall accept only original medical evidence that is duly authenticated by the head of the University Health Unit or another appointed officer at the University Health Unit.
6) Heads of Department, lecturers and other officers concerned shall be invited to submit their evidence, whether orally or in writing, whenever required.
7) The decision of the Appeals Tribunal on each appeal shall be communicated to the appellant through the office of the Vice-Chancellor.
8) The Tribunal shall consider each appeal once only, as it cannot sit on an appeal against its own decision.
9) The decision of the Appeals Tribunal shall be final within the University.
10) The Appeals Tribunal shall be entitled to have a legal advisor present at any of its meetings.
11) The appellant shall be allowed to be accompanied by a person of his/her choice or a legal advisor who will only be expected to witness the hearing.

7.2 Appeals for Remarking End-of-Semester Examination Scripts

1) Aggrieved students should, within five (5) days from the date of publication of examination results by Senate, lodge their appeal for remarking their end-of-semester examination scripts with the Vice-Chancellor who shall direct all timely appeals to the Heads of Department concerned through respective Executive Deans of School.

2) There shall be an appeal fee for remarking of each examination paper to be determined by Senate from time to time.

3) Final year examination papers shall be remarked by an external examiner if this was not done in the first instance.

4) Where for reasons beyond the control of the university an external examiner cannot be identified or cannot remark the examination papers, an internal assessor shall remark the papers if this was not done in the first instance.

5) Examination papers shall be remarked independently by an academic who did not originally mark the examination papers whose results are the subject of the appeal.

6) Where a supplementary examination has been written and a fail obtained, an appeal for the remarking of the original script upon which the supplementary examination was based in the first instance shall not be entertained.

7) A supplementary examination constitutes a re-assessment. Therefore, supplementary examination papers shall not be remarked.

8) Since students who fail deferred examinations are treated in the same manner as those who fail end-of-year examinations, results of deferred examinations should also be subject to appeal as appropriate.

9) Appellants are not entitled to see their examination scripts or material or be present, whether individually or through a legal or other representative, at any remarking exercise.

10) Heads of Department shall ensure that results of the remarked examination papers are submitted to the Vice-Chancellor within fourteen days from the date the appeal was directed to the school by the Vice-Chancellor.

11) Remarking of examination papers being contested shall be done once only and no further appeals for remarking the same papers shall be entertained.

PART III:
RULES AND REGULATIONS FOR ACADEMIC ASSESSMENT UNDER SEMESTER SYSTEM

1 INTRODUCTION

This revised version of rules and regulations for academic assessment replaces the document *Rules and Regulations for Academic Assessment Under a Semester System*: *Part B (For Students Registered After 31 August 2013)*. The major change in the revised version is the provision of a possibility for Senate of the University of Malawi to make decisions at the end of the first semester for affected students rather than wait until the end of the second semester. These decisions include academic withdrawal, recommendation for an academic award, and determination of a repeat. These rules and regulations are generic, unless otherwise specified by specific programme rules.

2 CREDIT LOAD

For any one semester, a student shall take a minimum of 15 credit hours (60 credits). The credit load may vary for different diplomas, degrees, and certificates in different years of study. The same applies to other special requirements, such as choice of modules, standards of achievement, compulsory modules, prerequisites, attachments, and practicums. Students are, therefore, advised to consult the relevant school regulations. At the end of a programme of study, a student is expected to have accumulated a minimum of 120 credit hours (480 credits).

Normally, a semester module is worth 3 credit hours (12 credits). In some cases, modules may be worth less or more than 3 credit hours (12 credits). However, a student is required to register for specified programme modules to a total minimum of 15 credit hours (60 credits) per semester.

3 ASSESSMENT OF PERFORMANCE

Assessment of performance is based on letter grades and the Grade Point Average (GPA) system. Assessment of students' performance is based on all modules registered for in a semester, at the end of the year, and upon completion of the programme of study.

Assessment may be based on tests, essays, practicals, assignments, industrial attachments, etc.

3.1 Fulfilment of Programme Requirements

No student shall be allowed to graduate without fulfilling academic requirements for Credit Load as specified by respective programmes.

3.2 Grading System

The grading system for student performance shall consist of six basic grades, A, B, C, D, E, and F, as indicated in Table 1.

Table 1: Basic Grades

Letter Grade	Quality of Grade	Academic Decision
A	Excellent	Distinction
B	Above average	Credit
C	Average	Pass
D	Fail	Marginal Failure
E	Fail	Nominal Failure
F	Fail	Undoubted Failure

3.3 Regular Module

A regular module (RM) refers to a module that is offered as part of a structured programme of study and is typically taken by a student for the first time. Students shall be required to register for regular modules to accumulate minimum credit hours and earn a qualification. Students shall attend classes on a regular basis and shall take all assessments and examinations in all regular courses.

3.4 Auditing a Module

A student may register to audit (sit-in) modules beyond the minimum requirement upon approval of the relevant Head of Department and Dean of School, and upon payment of audit fees. An auditor (hearer, hence "H") will be held responsible for class attendance on a regular basis, practicals, assignments and examinations. However, a module registered as an audit cannot be converted into a credit module. In some instances, registering for and studying an audit module may be compulsory. Compulsory audit modules will not be liable for payment of audit fees.

3.5 Withdrawal from a Programme of Study

Students may withdraw temporarily or permanently from a programme of study. A student who discontinues attendance in a programme of study without official withdrawal receives the grade of "F" in the registered modules.

The following are types of withdrawal and acceptable reasons for a student to withdraw:

a) Economic Withdrawal (EW) is withdrawal on financial grounds
b) Compassionate Withdrawal (CW) refers to withdrawal on compassionate grounds.
c) Illness Withdrawal (IW) is withdrawal on health grounds (Special consideration may be given in cases of serious illnesses, which have been certified by the university's medical personnel or certified medical practitioner, and the student may be allowed to withdraw for a maximum of two academic years).
d) Pregnancy Withdrawal (PW) is withdrawal requested by a student who is expectant.
e) Voluntary withdrawal (VW) is when a student decides to abandon his/her studies. Students who voluntarily withdraw from the university shall not be

readmitted unless in exceptional circumstance which shall be determined on a case by case basis.

A student who withdraws after completing a semester, shall re-join the university in the subsequent semester in the following academic year. No student who withdraws shall be allowed to repeat a completed semester. It is the responsibility of the returning student to find out in which semester any outstanding courses shall be offered prior to the beginning of an academic year. Returning students should also check and clear any outstanding fees.

3.6 Failing a Module

A student shall be deemed to have failed a module if s/he obtains a grade below C- in that module. A student who absents him/herself from an assessment session (test, examination, practicals, etc) in any module without a valid reason presented in the required manner shall get a score of zero (0) in the said activity.

3.7 Aegrotat

3.7.1 In exceptional circumstances, students who have passed their continuous assessments but are prevented by illness or other grave circumstances from completing the requirements of an end-of-semester and deferred examinations may be allowed to proceed as if they have passed, subject to satisfying eligibility conditions in cases of deferred examinations. In case of doubt, a deferred examination shall be given.

3.7.2 Students awarded an aegrotat pass in their final year will not be eligible for any mark of credit or distinction in their awards, but they may elect to sit for a deferred examination in those papers that they missed and thus become eligible for a mark of credit or distinction.

3.7.3 A recommendation for the award of an aegrotat pass shall be accepted if supported by the School Assessment Committee.[3] The recommendation shall be brought to Senate by the Executive Dean.

3.8 Incomplete Module Grade

When the quality of course work is satisfactory but some minor requirement of the module has not been completed for reasons acceptable to the instructor and the Head of Department, a report of Incomplete (I) may be made and additional time granted for completion of work. To remove an Incomplete "I" grade, a student must complete the deficiency within the allotted time, and the instructor shall submit the appropriate grade to the School Assessment Committee. An Incomplete ("I") grade not removed before the beginning of classes in the subsequent year becomes an "F".

3.9 Deferred Assessments/Examinations

A student who is prevented from preparing for an examination or from sitting for it by unforeseen circumstances or illness, may be granted permission by the Dean to write a deferred examination in the particular module(s).

[3] This committee shall comprise the school's Executive Dean, Heads of Department, and representatives of other schools.

3.9.1 Deferred examinations shall be administered not later than six weeks after the initial scheduled examination. Sitting for a deferred assessment for a continuous assessment is optional and at the discretion of the course lecturer.

3.9.2 Students who fail deferred examinations will be treated in the same manner as those who fail end-of-semester examinations, and shall be eligible for referred examinations if they qualify.

3.9.3 A student's illness must be supported by medical evidence from the University Health Unit or a certified medical practitioner. This evidence should normally be given to the Registrar prior to the examination. Only in very exceptional cases, such as incapacitation of the student while away from the university, will retrospective notification be considered.

3.10 Missing Examinations

3.10.1 The only valid reasons for missing assessments/examinations are illness, bereavement and other traumatic circumstances. In particular, extramural activities and misreading of the examination timetable are not valid reasons.

3.10.2 Students who miss an assessment/examination without a valid reason will be awarded a zero (0) for the missed assessment/examination.

3.11 Appeals

3.11.1 The Appeals Tribunal shall hear and decide on appeals against the decision of Senate to withdraw students.

3.11.2 Any appeal against withdrawal on academic grounds should, within five days after the publication of results, be directed to the Vice-Chancellor who shall in turn direct it to the Appeals Tribunal.

3.11.3 Students who wish to request that a particular grade be investigated or an examination be remarked should direct their request to the Vice-Chancellor who shall refer the matter to the respective School for investigation or remarking within a period prescribed by Senate.

3.11.4 Supplementary examinations shall not be remarked as these constitute a re-assessment.

3.11.5 Should the appeal against withdrawal be based on (a) particular module(s) in which the student failed, the Head(s) of Department of the lecturer(s) responsible for the specific module(s) or his/her nominee may be invited as a witness.

3.11.6 The appellant shall be heard on his/her appeal either orally or in writing, and s/he shall bear the cost of appearing for the purpose of being heard.

4 ASSESSMENT CRITERIA FOR YEARS 1, 2, 3 AND 4

4.1 Assessment of Student Performance

Students' performance for each semester shall be assessed on the basis of grade points for that semester's credit hours, as illustrated in Section 6, from which a grade point average shall be computed. The decision to award a pass or fail in a course is based on letter grades interpreted from the percentage mark ranges, as shown in Table 2.

Table 2: Assessment Criteria for Individual Courses

Range of Marks	Letter Grade for Course	Grade Points for Course	Quality of Grade	Academic Decision
85-100 75-84	A+ A	4.00 3.75	Excellent Excellent	High Distinction Distinction
70-74 65-69	B+ B	3.74 3.00	Above average Above average	High Credit Credit
60-64 55-59 50-54	C+ C C-	2.99 2.50 2.00	Average Average Average	High Pass Satisfactory Pass Bare Pass
45-49 40-44 0-39	D E F	1.99 1.00 0.00	Fail Fail Fail	Marginal Failure Failure Undoubted Failure

Note: Cumulative Grade Points shall be rounded to two decimal places.

4.2 End-of-Year Assessment

4.2.1 Pass and Proceed Cases

A student who has an end of academic year cumulative grade point average ($cGPA_y$) of at least 2.00 and no grade below C- in the modules prescribed and registered for the level is deemed to have passed at that level and will proceed to the next level.

4.2.2 Referrals/Supplementary Examinations

a) Students with $cGPA_y$ of 1.50 or more and who have (a) grade(s) below C- in some module(s) will be referred in the failed module(s), as long as the student is not repeating the level of the failed modules(s).
b) A student shall proceed to the next level if he/she passes all the referred modules. The maximum pass grade achieved after a supplementary examination shall be the percentage mark of 50 (grade of C-).
c) Students who fail long essays or dissertations shall be provided with feedback on areas requiring improvement on the first day of supplementary examinations and will be expected to hand in their revised work on the last day of the supplementary examination period for assessment.

4.2.3 Carryovers

Students who fail (a) referred module(s) and whose new recalculated $cGPA_y$ is equal to or greater than 2.00 shall be allowed to carryover (CO) the failed module(s) to the next level as long as the total failed load does not exceed 4 credit hours.

4.2.4 Conditions Imposed on Students Who Have Carryovers (CO)

a) Students shall carryover the same module once during a particular programme of study.

b) Examinations of carryover modules shall be taken at the next immediate sitting of such examinations. The maximum pass grade achieved after a carryover examination shall be the percentage mark of 50 (grade of C-).

c) The onus of preparing, checking the schedule, and registering for such examinations rests with the student.

d) A student with a carryover module may attend classes and do continuous assessments for the failed module if the timetable permits him/her to do so.

e) The progression of a student to the next level shall depend on the outcomes of both CO and the main level of study.

f) Students with CO will not be permitted to change or substitute modules to which the carryover refers.

g) A student who fails a carryover and qualifies for another carryover in the main level of study shall repeat the failed carryover course in the lower level and simultaneously register for the carryover module in the main level. After passing both modules, s/he shall proceed to the next level of study.

h) There shall be no option for referral after failing a CO.

4.2.5 Repeats

a) Throughout this document, the word "repeat" (RPT) shall refer to repeating on academic grounds only.

b) Students who fail referred modules and whose recalculated $cGPA_y$ is equal to or greater than 1.50 shall repeat the level in the modules failed, provided they do not qualify for a carryover and have not repeated before.

c) Students who fail CO modules shall qualify for a repeat at the lower level without the option of a referral in the failed CO, provided that they do not simultaneously qualify for a repeat or withdrawal in the main level of study.

4.2.6 Conditions for Repeating Modules

a) Posted examination results for repeat modules shall be the actual grades obtained in each of the modules examined during that semester. They will carry the abbreviation “RPT” in brackets to the right of the grades to indicate that the grades are from repeated courses.

b) Students shall repeat only once during their studies at the university. Students who fail modules they are repeating shall be withdrawn.

c) Students repeating a level may, at the discretion of the concerned Head of Department and with the approval of the Dean of the relevant school (in which the subject is offered), be allowed to register for a different module other than the failed module during the repeat level. The registration form shall carry a written approval as an attachment. Those allowed to switch to another module shall still be deemed to be repeating the level of study and the description "RPT" shall apply.

4.2.7 Fail and Withdrawal/ Academic Exclusion

a) Students whose $cGPA_y$ at the end of the level is less than 1.50 shall be withdrawn from the university.

b) Students who fail a repeated module (regardless of the credit load of the failed module) during the repeating level shall be withdrawn (either in the first semester or second semester) without an option of a referral.

c) Students who fail carryover examinations and simultaneously satisfy conditions of repeat in the main level of study shall be withdrawn.

d) A student who is repeating a module and simultaneously has a carryover module shall be withdrawn should s/he fail either of the modules.

5 END OF PROGRAMME ASSESSMENT

End of Programme Assessment is done in the final level of a 4-Year Bachelor's degree programme using the Letter Grades and the GPA. The quality of the award is based on the cumulative GPA from year 2 to the final year of the programme of study. The cGPA to determine the quality of the award for students who join the university at the third-year level shall be based on the cumulative GPA for years 3 and 4. For other programmes of duration that is less than four years, such as one-year honours degree programmes, the quality of the degrees shall be based on the actual duration of the programme of study.

For a final year student repeating a CO offered in the first semester, an end of programme assessment and determination to give an academic award shall be made after consideration of results by Senate at the end of the semester.

5.1 Classifications of Final Awards

5.1.1 Final awards are designated as follows:

General Degrees/ Diplomas/ Certificates: Distinction, Credit, Pass.

Honours Degrees: First Class, Upper Second Class, Lower Second Class, Third Class.

5.1.2 The classifications of Bachelor's and Honours Degree awards are presented in Tables 3 and 4, respectively.

Table 3: Quality of Award of Bachelor's Degree

	cGPA Range	**Classification**
	3.75 – 4.00	Distinction Degree
	3.00 – 3.74	Credit Degree
	2.00 – 2.99	Pass Degree
	<2.00	Fail

Table 4: Quality of Award of Honours Degree

cGPA Range	Classification
3.75 - 4.00	First Class (1)
3.00 - 3.74	Upper Second Class (2:1)
2.51 - 2.99	Lower Second Class (2:2)
2.00 - 2.50	Third Class (3)
<2.00	Fail

5.1.3 Students who, for academic reasons, have repeated any level other than level one of the programme under which the award is being considered, are not eligible for an award of Distinction or First Class, but may be awarded the highest award of Credit or Upper Second Class if their cGPA meets the classification.

5.2 Additional Conditions for the Classification of Bachelor of Education Awards

- **Pass** is awarded to a student who has obtained a cumulative Grade Point Average (cGPA) in the range of 2.00 to 2.99 in the final year, plus a minimum of a pass in Teaching Practice.
- **Credit** is awarded to a student who has obtained a cGPA in the range of 3.00 to 3.74 in the final year, a cGPA in the range of 3.00 to 3.74 in education courses, plus a minimum of a pass in Teaching Practice.
- **Distinction** is awarded to students who have obtained a cGPA in the range of 3.75 to 4.00 in the final year, a cGPA in the range of 3.75 to 4.00 in education modules, plus a minimum of a pass in Teaching Practice.

6 CALCULATION OF GPAS

Assessment of students' performance for a given semester will be based on letter grades interpreted from corresponding raw marks and grade points scored from each module as outlined below.

- Grade points are ordered performance scale points a student can obtain in a course.
- A semester grade point average (sGPA) is the **weighted average** of grade points earned in the semester. The semester GPA is calculated by dividing the sum of grade points earned multiplied by the corresponding credit hours by the total number of credit hours attempted, whether the module was passed or not, exclusive of credits reported as auditing (**H**), incomplete (**I**), and withdrawn (**W**).
- For a given semester, sGPA is computed to assess a student's performance using the following formula:

$$sGPA = \frac{\sum_{i=1}^{n} GP_i \times CH_i}{\sum_{i=1}^{n} CH_i}$$

Where s*GPA*= the weighted grade point average for the semester

GP_i= Grade Point for the $_i$th module offered in a given semester

CH_i= Number of credit hours for the $_i$th module *n*= Number of modules taken in the semester

- The cumulative grade point average (cGPA) is the weighted average of grade points earned by a student in two or more semesters of the programme of study.

An example for computing the cGPA for student X in semesters 1 and 2 is illustrated:

Table 5: Cumulative Grade Point Average (Sem. 1 + 2) for Student X.

Semester	**Course**	**Final Mark**	**Credit Hours (CH)**	**Grade Points (GP)**	**CH x GP**
1	A	53	3	2.00	6.00
1	B	79	4	3.75	15.00
1	C	88	4	4.00	16.00
1	D	73	3	3.74	11.22
1	E	64	1.5	2.99	4.50
1	F	56	3	2.50	7.50
1	**Subtotal**		**18.5**		**60.22**
2	G	59	3	2.50	7.50
2	H	62	3	2.99	8.97
2	I	75	3	3.75	11.25
2	J	54	2	2.00	4.00
2	K	64	4	2.99	11.96
2	L	92	2	4.00	8.00
2	**Sub-Total**		**17**		**51.68**
1 & 2	**Grand Total**		**35.5**		

Since $sGPA = \frac{\sum_{i=1}^{n} GP_i \times CH_i}{\sum_{i=1}^{n} CH_i}$ then

For semester 1

□ ^{n} GP_i □ CH_i $_{sGPA}$□ $i_{□1}$ n □ 3□2.00 □ 4□3.75 □ 4□4.00 □ 3□3.74 □1.5□2.99 □ 3 x 2.50 □ 60.20 □ $_{3.25}$

□ 3□ 4 □ 4 □ 3□1.5 □ 3 18.5

CH_i

i□1

For semester 2

□ ^{n} GP_i □ CH_i $_{sGPA}$□ $i_{□1}$ n □ 3□2.50 □ 3□2.99 □ 3□3.75 □ 2□2.00 □ 4□2.99 □ 2 x 4.00 □ 51.68 □ $_{3.04}$

□ 3□ 3□ 3□ 2 □ 4 □ 2 17

CH_i

i□1

Cumulative Grade Point Average (cGPA)

A cumulative cGPA is the weighted average of two or more sGPA. For the two semesters in the example above:

k

□sGPA$_i$ xsCH $_i$ cGPA □ $i_{□1}$ k □ (3.26 x18.5) □ (3.04 x17) □ 3.15

35.5

□sCH$_i$

i□1

Where cGPA = Cumulative Grade Point Average of the two semesters sGPA$_i$=sGPA is the weighted number of grade points earned in semester i.

sCH$_i$ = total number of credit hours registered for in semester i.

k =Number of semesters.